

Archives Protection Act, 1989

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RECORDS PROTECTION ACT, 2046 (1990)

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Amending Acts

1. Republic Strengthening and Amendment of Some Nepal Laws Act, 2066 (2009) 2066.1.7
2. Amendment and Repeal of Some Nepal Laws Act, 2072 (2015) 2072.6.14
3. Act to Amend Some Nepal Acts to make them Consistent with the Constitution of Nepal, 2075 (2018) 2075.11.19
4. Records Protection (First Amendment) Act, 2081 (2024) 2081.4.14

Act No. 17 of the year 2046 (1990)

An Act Made to Provide for the Protection of Records

Preamble: Whereas, it is desirable to make legal provisions regarding the systematic and secure preservation of documents of national importance in the form of records,

His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title and Commencement:

1.1 The name of this Act is the 'Records Protection Act, 2048 (1991)'. 1.2 This Act shall come into force immediately. 2. Definitions:

2.1 Unless the subject or context otherwise requires, in this Act,-

2.1.1 'Document' shall be deemed to include the following matters:-

Amended by the Records Protection (First Amendment) Act, 2081.2.1.1.1 Handwritten manuscripts, books, reports, financial statements, constitution, acts, rules, directives, procedures, circulars, memos, notices, treaties, agreements, newspapers, letters, deeds, pictures, photographs, maps, plans, charts, files, case records, registers, Red Seals, Signature Seals, genealogies, charters, writs, rukkas (royal orders), one-stamped documents, two-stamped documents, proclamations, deeds of renunciation, decision books, land-related bonds, vouchers, receipts, and other documents or publications of a similar nature. 2.1.1.2 Films, microfilms, tapes (audio recorder), motion pictures, computer disks or Added by the Records Protection (First Amendment) Act, 2081. computer cassettes, including originals or copies of digital or electronic records. Amended by the Records Protection (First Amendment) Act, 2081.2.1.1.3 Palm leaf, birch bark, gold leaf, silver leaf, copper plates, stone inscriptions, wooden plates, brick inscriptions, or their copies or photographs. Amended by the Records Protection (First Amendment) Act, 2081.2.1.1.4 Postage stamps affixed with first day cancellation of publication, and new publications of money order forms, aerogrammes, and postcards. Added by the Records Protection (First Amendment) Act, 2081.2.1.1.5 Any record or image inscribed on clay,

leather hide, ivory, coins, insignia, medals, trophies, and seals. 2.1.2 "Record" shall be deemed to mean documents securely preserved in the form of records in the National Archives and Amended by the Records Protection (First Amendment) Act, 2081. documents registered pursuant to clause 2.1.1. 2.1.3 "National Archives" shall be deemed to mean the National Archives established pursuant to section 3.

Amended by the Records Protection (First Amendment) Act, 2081.2.1.4 "Office" shall be deemed to mean the following bodies or offices:- 2.1.4.1 The Federal Parliament, Ministries of the Government of Nepal, Courts, Constitutional Bodies, Commissions, Secretariats, Departments, or any other government body or office subordinate thereto, 2.1.4.2 Corporations, companies, banks, or committees under full or partial ownership or control of the Government of Nepal, or commissions, corporations, authorities, companies, foundations, boards, centers, councils, libraries, and other organized institutions of a similar nature established pursuant to prevailing law or constituted by the Government of Nepal, 2.1.4.3 Provincial Assembly, Provincial Government, and offices subordinate thereto, 2.1.4.4 Local level and offices subordinate thereto, 2.1.4.5 Universities, colleges, research centers, and other academic or educational institutions of a similar nature, 2.1.4.6 Bodies or offices established pursuant to an order issued by the Government of Nepal, or 2.1.4.7 Other bodies or offices specified by the Government of Nepal by publishing a notice in the Nepal Gazette. 2.1.5 "Committee" shall be deemed to mean the Advisory Committee constituted pursuant to section 4. 2.1.6 "Prescribed or as prescribed" shall be deemed to mean prescribed or as prescribed in the rules made under this Act. Added by the Records Protection (First Amendment) Act, 2081.2.1.7 "Ministry" shall be deemed to mean the Ministry of Culture, Tourism and Civil Aviation of the Government of Nepal. Added by the Records Protection (First Amendment) Act, 2081.2.1.8 "Documents of national importance" shall be deemed to mean the documents mentioned in the Schedule, and that expression also refers to documents specified by the Government of Nepal by publishing a notice in the Nepal Gazette. Added by the Records Protection (First Amendment) Act, 2081.2.1.9 "Preservation" shall be deemed to mean the act of keeping records in a suitable environment, decontaminating, repairing, cleaning, and maintaining them in a safe and systematic manner through traditional and modern technologies, without altering their original form, quality, and quantity. 3. Establishment of National Archives: 3.1 There shall be one National Archives for keeping records in a systematic and secure manner. 3.2 The National Archives established before the commencement of this Act shall be deemed to have been established under this Act. Added by the Records Protection (First Amendment) Act, 2081.3.3 There shall be a Director General to function as the head of the National Archives. Added by the Records Protection (First Amendment) Act, 2081.3.4 The Director General pursuant to sub-section 3.3 shall be from the Education Service, Archaeology Group, gazetted first class (technical). Added by the Records Protection (First Amendment) Act, 2081.3.5 The functions, duties, and powers of the Director General shall be as prescribed.

Amended by the Records Protection (First Amendment) Act, 2081.4. Formation of Advisory Committee: 4.1 For the systematic and secure preservation of records, there shall be an Advisory Committee constituted as follows to provide necessary advice to the National Archives:- (a) Secretary, Ministry - Chairperson (b) Joint Secretary, Office of the Prime Minister and Council of Ministers - Member (c) Joint Secretary, Ministry of Finance - Member (d) Joint Secretary, Ministry of Foreign Affairs - Member (e) Joint Secretary, Ministry of Law, Justice and Parliamentary Affairs - Member (f) Joint Secretary, Ministry of Land Management, Cooperatives and Poverty Alleviation - Member (g) Joint Secretary, Ministry - Member (h) Joint Secretary, Ministry of Education, Science and Technology - Member (i) Chief, Nepal National Library - Member (j) At least two women including four persons nominated by the Government of Nepal from among experts in related subjects - Member (k) Director General, National Archives - Member-Secretary 4.2 While nominating members pursuant to clause (j) of sub-section 4.1, it shall be done on the basis of the principle of

inclusiveness. 4.3 The term of office of members pursuant to clause (j) of sub-section 4.1 shall be four years. 4.4 Notwithstanding anything contained in sub-section 4.3, if the performance of a member pursuant to clause (j) of sub-section 4.1 is not satisfactory, the Ministry may remove him/her at any time. Provided that before such removal, he/she shall be given a reasonable opportunity to present a defense. 4.5 In the meeting of the Committee pursuant to sub-section 4.1, experts related to records preservation may also be invited as required. 4.6 The functions, duties, and powers of the Committee and arrangements relating to meetings shall be as prescribed. 5. Functions, Duties, and Powers of the National Archives: 5.1 The functions, duties, and powers of the National Archives shall be as follows:- 5.1.1 To register documents received pursuant to sections 6 and 7, 5.1.2 To keep records in a systematic and secure manner, 5.1.3 To classify records as prescribed and prepare their list, 5.1.4 To print or reproduce records as necessary, 5.1.5 To make necessary arrangements for allowing any person to inspect or copy records or provide copies thereof, 5.1.6 To provide necessary advice to offices regarding the secure preservation of documents, Added by the Records Protection (First Amendment) Act, 2081.5.1.6a.

To survey, search, collect, preserve, and promote records of national importance,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6b. To collect or obtain documents of historical and national importance through gift, purchase, lease, or other means,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6c. To supervise works related to the preservation and management of documents in offices,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6d. To provide assistance and advice regarding the preservation and management of records and documents kept by offices, provinces, or local levels,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6e. To microfilm and digitize records,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6f. To preserve records in such a way that they are not subject to damage or loss from disasters,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6g. To grant approval upon conditions if anyone requests to publish records,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6h. To raise public awareness regarding the collection and preservation of records,

Added by the Records Protection (First Amendment) Act, 2081.5.1.6i. To submit an annual report on records management to the Ministry each year,

5.1.7 Other functions, duties, and powers of the National Archives shall be as prescribed. 6. Regarding Sending of Documents by Offices to the National Archives:

6.1 Offices shall send the following documents to the National Archives for secure preservation and storage:-

6.1.1 Documents of national importance mentioned in Amended by the Records Protection (First Amendment) Act, 2081. sub-clauses 2.1.1.1 and 2.1.1.2 that are twenty-five years old or older,

Added by the Records Protection (First Amendment) Act, 2081.6.1.1a. Certified copies of treaties and agreements to which Nepal is a party and which relate to the office,

Amended by the Records Protection (First Amendment) Act, 2081.6.1.2 Palm leaf, birch bark, gold leaf, silver

leaf, copper plates, stone inscriptions, wooden plates, brick inscriptions, or their copies or photographs,

6.1.3 Postage stamps affixed with first day cancellation of each Amended by the Records Protection (First Amendment) Act, 2081. publication, and new publications of money order forms, aerogrammes, and postcards. 6.2 If an office deems that documents should be preserved in the form of records from a national perspective, it shall send the following documents to the National Archives for secure preservation and storage, with or without specifying a period: Amended by the Records Protection (First Amendment) Act, 2081.

6.2.1 Reports, financial statements, treaties, agreements, or any publication, 6.2.2 Handwritten manuscripts, books, newspapers, letters, deeds, pictures, or photographs, 6.2.3 Maps, plans, charts, files, case records, or registers, films, 6.2.4 Films, microfilms, tapes (audio recorder, motion picture, or computer disks or Added by the Records Protection (First Amendment) Act, 2081. computer cassettes, including originals or copies of digital or electronic records), 6.2.5 Amended by the Records Protection (First Amendment) Act, 2081. Other documents not mentioned in clauses 6.2.1, 6.2.2, 6.2.3, or 6.2.4. 6.3 When an office pulps government documents pursuant to the prevailing law relating to pulping government documents, it shall send the documents as prescribed to the National Archives. Added by the Records Protection (First Amendment) Act, 2081.6.3a. The office shall send a register containing the list of documents pulped pursuant to prevailing law to the National Archives for record. 6.4 While sending documents to the National Archives, the office shall also send a list according to their classification. 6.5 While sending documents pursuant to sub-section 6.1 or 6.2 to the National Archives, if such documents should not be inspected, copied, or copies thereof provided to anyone other than a prescribed person for a specific period, the office shall mention that fact and such period and send them to the National Archives for storage. 6.6 Documents sent by an office to the National Archives pursuant to sub-section 6.1 shall not be taken back by that office. Provided that, among the documents sent to the National Archives pursuant to sub-section 6.2, if documents were sent with a specified period, after the expiry of such period, the concerned office may take them back as prescribed if it so desires. 6.7 If the office that sent documents to the National Archives pursuant to sub-section 6.1 needs such documents, the National Archives may make them available to the concerned office as prescribed for a prescribed period, subject to the return of such documents to the National Archives. Added by the Records Protection (First Amendment) Act, 2081.6a. Provincial Governments and Local Levels to Send Documents: Provincial Governments and local levels shall send one copy of documents of national importance to the National Archives for preservation. Added by the Records Protection (First Amendment) Act, 2081.6a. Records Preservation Contact Person to be Designated: 6a.1 Each office shall designate an employee as a Records Preservation Contact Person for the preservation and management of documents.

6a.2 Other provisions relating to the preservation and management of documents by the Contact Person pursuant to sub-section 6a.1 shall be as prescribed. 7. Documents May Be Sent to the National Archives: 7.1 Any Amended by the Records Protection (First Amendment) Act, 2081. person, community, or association, institution may send any document of national importance from historical, religious, cultural, literary, economic, or other perspectives in their possession to the National Archives for secure preservation as national property. 7.2 Documents sent to the National Archives pursuant to sub-section 7.1 shall not be taken back from the National Archives by the Amended by the Records Protection (First Amendment) Act, 2081. person, community, or association, institution that sent such documents. Added by the Records Protection (First Amendment) Act, 2081.7a. Government of Nepal May Purchase or Accept: 7a.1 If any person or institution wishes to transfer records of historical, cultural, religious, and national importance collected by them to the Government of Nepal, with or without consideration, the Government of Nepal may accept such

records. 7a.2 If any records of historical, cultural, or religious importance related to Nepal are in the possession of any national or international institution or domestic or foreign person, and such institution or person wishes to give or sell them to Nepal, the Government of Nepal may, upon the recommendation of the National Archives, take or purchase such important records. 7a.3 Notwithstanding anything contained elsewhere in this Act, if any person causes damage or loss to documents of national importance in private collections, the Government of Nepal may confiscate such documents and send them to the National Archives. 8. Documents to be Kept in a Systematic and Secure Manner: 8.1 Every office shall keep the documents in its office in a systematic and secure manner. 8.2 In respect of keeping documents systematically and securely pursuant to sub-section 8.1, the concerned office may take necessary advice from the National Archives. Added by the Records Protection (First Amendment) Act, 2081.8.3 The National Archives may monitor and inspect the records management of offices. Added by the Records Protection (First Amendment) Act, 2081.8.4 If, upon monitoring and inspection pursuant to sub-section 8.3, it is found that records management has not been done properly, the National Archives may give necessary directions for preservation and management. It shall be the duty of the concerned office to comply with such directions. 9.

Prohibited Records: 9.1 The following records shall be deemed prohibited records:- 9.1.1 Documents sent by the concerned office to the National Archives for secure storage, with or without specifying a period, on the condition that no one other than the person specified may inspect, copy, or take copies thereof, 9.1.2 Records specified by the National Archives as prohibited from a national perspective, with or without specifying a period, on the condition that no one other than the person specified may inspect, copy, or take copies thereof. 10. Inspection of Records or Provision of Copies: 10.1 If any person wishes to inspect records other than prohibited records, the National Archives may allow such inspection as prescribed. 10.2 If any person wishes to copy or take copies of records other than prohibited records, the National Archives may, upon charging fees as prescribed, allow such copying or provide copies thereof as prescribed. 10.3 Notwithstanding anything contained in sub-section 10.2, in prescribed circumstances, such records may be copied or copies provided without fee. 11. No Defacement or Alteration of Records: 11.1 Employees of the National Archives having the duty to securely preserve records shall not deface, alter, tear, or destroy such records in any manner. 11.2 Any person inspecting, copying, or taking copies of records, or any other person, shall not deface, alter, tear, or destroy such records in any manner. Added by the Act to Amend Some Nepal Acts to make them Consistent with the Constitution of Nepal, 2075.11a. Provinces and Local Levels may Preserve and Manage Records: (1) Provinces and local levels shall make necessary arrangements regarding the preservation and management of their records. (2) Arrangements regarding the preservation and management of records pursuant to sub-section (1) shall be as provided in the law of the concerned province or local level. Added by the Records Protection (First Amendment) Act, 2081.11b. Approval Required: 11b.1 No person shall take documents of national importance outside Nepal. 11b.2 Notwithstanding anything contained in sub-section 11b.1, if, for any special reason, it is necessary to take the original copy of documents of national importance outside Nepal for a certain period, stating the reason, approval shall be obtained from the Council of Ministers of the Government of Nepal upon the recommendation of the Ministry. 11b.3 Other arrangements regarding taking documents of national importance outside Nepal pursuant to sub-section 11b.2 shall be as approved by the Council of Ministers of the Government of Nepal.

11b.4 If any person wishes to take a copy of documents of national importance under this Act, the National Archives may provide it, and information about providing the copy of such documents shall be given to the Ministry. 12. Penalties: 12.1 If an employee of the National Archives having the duty to securely preserve records allows any person other than the prescribed person to inspect, copy, or provide copies of prohibited

records pursuant to section 9, such employee shall be liable to a fine of up to Amended by the Records Protection (First Amendment) Act, 2081. fifty thousand rupees or imprisonment for up to three years or both. 12.2 If an employee of the National Archives having the duty to securely preserve records violates sub-section 11.1 and defaces, alters, tears, or destroys records, such employee shall be liable to a fine of up to Amended by the Records Protection (First Amendment) Act, 2081. fifty thousand rupees or imprisonment for up to two years or both. 12.3 If any person other than an employee of the National Archives having the duty to securely preserve records violates sub-section 11.2 and defaces, alters, tears, or destroys records, he/she shall be liable to a fine of up to Amended by the Records Protection (First Amendment) Act, 2081. thirty thousand rupees or imprisonment for up to three years or both. 12.4 If any person does any act contrary to this Act or the rules made under this Act, other than those mentioned in sub-sections 12.1, 12.2, and 12.3, he/she shall be liable to a fine of up to Amended by the Records Protection (First Amendment) Act, 2081. fifty thousand rupees. 13. Action may be Taken Under Other Prevailing Law: If any person commits an act which is an offense under this Act, and such act is also an offense under any other prevailing law, nothing contained in this Act shall be deemed to bar action against him/her under such other prevailing law in respect of such offense. 14. Government to be Plaintiff: The plaintiff in a case under this Act shall be the Government of Nepal. 15. Power to Make Rules: The Government of Nepal may make necessary rules for the implementation of the objectives of this Act. Schedule (Relating to clause 2.1.8 of section 2) Documents of National Importance 1. Documents bearing the Red Seal, 2. Documents signed by the incumbent Head of State acting in that capacity, 3. Original copies of decisions, agreements, etc., made or executed relating to political changes in Nepal, 4.

Original copies of the Constitution of Nepal and documents relating to constitution-making, 5. Original copies of bills passed by the Federal Parliament and certified, 6. Original copies of decisions of the Council of Ministers of the Government of Nepal, 7. Important documents relating to treaties, agreements, and correspondence with foreign states, international unions, organizations, or other foreign unions, organizations, 8. Maps of Nepal from time to time, 9. Documents containing correspondence relating to the borders of the country, 10. Joint statements of representatives of Nepal and foreign states, 11. Original copies of decisions of the Council of Ministers kept in the concerned Ministry, 12. Important documents relating to peace and security of the country, 13. Unpublished acts, writs, charters, royal insignias, 14. Documents showing title to movable or immovable property, 15. Personal details of members of the Federal Parliament, 16. Survey map documents, 17. Service rolls of employees, 18. Final judgments or orders made by competent courts or tribunals in cases where the Government of Nepal is plaintiff or defendant or in which the Government of Nepal has an interest, 19. Documents of correspondence with foreign states on matters relating to citizenship and issues of citizens, 20. Reports of various commissions, 21. Handwritten manuscripts and records of historical, social, religious, and cultural importance of the country, or 22. Other documents deemed appropriate by the head of the office.